

25LBCV01766 25LBCV01766

County: los-angeles

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Case Number: 25LBCV01766 Hearing Date: July 7, 2026 Dept: S28

BACKGROUND

On

June 17, 2025, Plaintiff Jose Jesus Tabarez ("Plaintiff") commenced this action against Defendant Mercedes-Benz USA, LLC ("Defendant") alleging violations of Statutory Obligations under the Song-Beverly Act, specifically (1) breach of express warranty and (2) breach of implied warranty.

On

April 6, 2026, Defendant filed the instant Motion for Summary Judgment.

On

June 17, 2026, Plaintiff filed his opposition.

On

June 26, 2026, Defendant filed a reply.

DISCUSSION

Applicable

Law

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25

Cal.4th 826, 843.) "Code of Civil Procedure section 437c,

subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom [citation] and must view such evidence [citations] and such inferences [citations] in the light most favorable to the opposing party." (Aguilar, supra, at pp. 844-845 [quotation marks omitted].) "On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) "A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Code Civ. Proc. § 437c, subd. (p)(2).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) "If the plaintiff cannot do so, summary judgment should be granted." (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

Preliminary
Matters

A. Plaintiff's Request for Judicial

Notice

Plaintiff asks the Court to take

judicial notice of Code of Civil Procedure section 871.24 and Senate Bill No. 26, Chapter 1, Statutes of 2025. Judicial notice of these documents is unnecessary as Plaintiff can simply cite these primary sources in their opposition. However, these requests are GRANTED.

Analysis

B. Summary Adjudication of Plaintiff's

Prayer for Civil Penalties

Plaintiff's

Complaint prays for a civil penalty in the amount of two times Plaintiff's actual damages based on Defendant's alleged willful violation of the Song-Beverly Act. (Complaint, ¶ 36.) Defendant's central argument for summary adjudication of Plaintiff's prayer for civil penalties is that Defendant cannot be found to have willfully failed to comply with its express warranty obligations as it made a prompt and reasonable offer to repurchase the Subject Vehicle, notwithstanding that Plaintiff made no pre-litigation repurchase request. (Motion, p. 3.)

Defendant

puts forth the following facts in support of its argument: On August 25, 2023, Plaintiff purchased a CPO 2021 Mercedes-Benz GLA250W ("Subject Vehicle"). (Separate statement of Undisputed Material Facts ("SSUMF") UMF No. 1.) Plaintiff contacted MBUSA on May 13, 2025, regarding the Subject Vehicle but did not provide notice of a prelitigation repurchase demand. (UMF No. 2.) MBUSA called Plaintiff on May 22, 2025, but he was not available and left a message. (See CAC Report, MBUSA - TABAREZ, JOSE 00463-464, attached as Ex. "C" to Leung Decl.) MBUSA emailed Plaintiff on May 23, 2025, to inform him it had tried to contact him by phone. (See CAC Report, MBUSA - TABAREZ, JOSE 00463, Leung Decl. Ex. C.) MBUSA called Plaintiff on June 12, 2025, but he was not available and left a message. (See CAC Report, MBUSA - TABAREZ, JOSE 00462, Leung Decl. Ex. C.) On June 13, 2025, despite no repurchase demand, MBUSA initiated and advised Plaintiff via email that a repurchase was under review and that the review process takes between six (6) and eight (8) weeks. (See CAC Report, MBUSA - TABAREZ, JOSE 00458-459, attached as Ex. "C" to Leung Decl.) Plaintiff initially filed his operative complaint on June 17, 2025. (UMF 4.) On July 14,

2025, MBUSA called Plaintiff to inform him that MBUSA had approved a repurchase. (UMF 5.) On July 14, 2025, MBUSA emailed Plaintiff to notify him that MBUSA approved a repurchase and that MBUSA's agent, Sedgwick, would reach out to Plaintiff to handle repurchase of the Subject Vehicle. (See CAC Report, MBUSA - TABAREZ, JOSE 00456-457, Leung Decl. Ex. C.) Plaintiff's Initial Disclosures produced on or about September 22, 2025, provide no evidence that Plaintiff made a pre-litigation repurchase request. (Leung Decl. at para. 7 and Ex. D.)

The

Song-Beverly Act provides: "if the manufacturer or its representative in this state does not service or repair the goods to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either replace the goods or reimburse the buyer in an amount equal to the purchase price paid by the buyer, less that amount directly attributable to use by the buyer prior to the discovery of the nonconformity." (Civ. Code, § 1793.2, subd. (d)(1).) If the manufacturer chooses restitution, it shall be equal to the actual price paid or payable by the buyer, including any charges for transportation and manufacturer-installed options, but excluding nonmanufacturer items installed by a dealer or the buyer, and including any collateral charges such as sales or use tax, license fees, registration fees, and other official fees, plus any incidental damages to which the buyer is entitled under Section 1794, including, but not limited to, reasonable repair, towing, and rental car costs actually incurred by the buyer. (Id., sub. (d)(2)(B).)

"If the buyer establishes that the failure to comply was willful, the judgment may include, in addition to the amounts recovered under subdivision (a), a civil penalty which shall not exceed two times the amount of actual damages." (Civ. Proc. Code § 1794(c), emphasis added.) Section 1794(e)(3) further provides that, after the events giving rise to the presumption of nonconformity, "the buyer may serve upon the manufacturer a written notice requesting that the manufacturer comply with paragraph (2) of subdivision (d) of Section 1793.2. If the buyer fails to serve the notice, the manufacturer shall not be liable for a civil penalty pursuant to this subdivision." (Civ. Code, § 1794(e)(3), emphasis added.)

Here,

the Court finds that Defendant has met its moving burden to establish that

Plaintiff made no formal repurchase request, and that Defendant made an offer to repurchase within a reasonable time which negates the “willful” failure to replace or repurchase element in Plaintiffs’ claim for civil penalties arising from a breach of express warranty. On June 13, 2025, prior to Plaintiff filing suit, MBUSA advised Plaintiff that a repurchase was under review and the review process would take 6 to 8 weeks. (See CAC Report at MBUSA - TABAREZ, JOSE 00456-459, Ex. C to Leung Decl.) Thereafter, MBUSA advised Plaintiff on July 14, 2025 (within eight weeks of Plaintiff’s initial contact with MBUSA on May 13, 2023) that the repurchase request was approved and that MBUSA’s agent would be reaching out to complete the repurchase. (Ibid.)

These

facts extinguish any genuine dispute of material fact because civil penalties may only be recovered if the buyer establishes that the manufacturer willfully violated the Song-Beverly Act. Defendant has met its moving burden to establish that it made an offer to repurchase, which Plaintiff did not respond to, which negates the basis for civil penalties. Plaintiff does not dispute that Defendant made the repurchase offer on July 14, 2025, nor does he dispute that he did not respond to Defendant’s offer. (UMF 5) Defendant has sufficiently established that its repurchase offer was reasonably prompt, especially in light of the lack of written repurchase request from Plaintiff, and that any failure to comply with the Song-Beverly Act was not “willful.”

Overall,

Defendant has negated the element of willful failure to repurchase in Plaintiffs’ Cause of Action that would give rise to civil penalties under the first cause of action for breach of express warranty.

The

burden now shifts to Plaintiff. In opposition, Plaintiff contends that he made a repurchase request on May 13, 2025. (Opp., pp. 1-2.) In light of that, Plaintiff argues that prior to the enactment of Code of Civil Procedure § 871.24, Defendant had thirty days to comply with its repurchase obligations, making June 12, 2025, the applicable deadline. (Ibid.) Plaintiff further argues that since Defendant did not approve the repurchase until July 14, 2025, sixty-three days after Plaintiff’s request and more than twice the statutory period, these facts create a triable issue of material fact as to whether Defendant knowingly and “willfully” failed to timely comply with its obligation. (Ibid.)

Here,

Plaintiff does not meet his burden of showing a triable issue of material fact on the issue of civil penalties. First, it is reasonably disputed that Plaintiff made a repurchase request on May 13, 2026 as Plaintiff contends. Plaintiff puts forth no writing or any other evidence to show that such a request was made on May 13, 2026. While it appears that both parties agree that Plaintiff contacted Defendant in some capacity regarding the subject vehicle on May 13, 2026, there is no evidence that this contact constituted a formal written repurchase request. That Defendant may have treated this informal contact as such, possibly in anticipation of a formal request, does not make it such. Plaintiff must produce evidence of this key fact in order for his claim for civil penalties to survive summary adjudication. Second, Plaintiffs' only argument that there is a triable issue of fact as to whether Defendant's alleged violations were willful is that Defendant's repurchase offer was not timely. Plaintiff offers no other evidence that Defendant's alleged violation of the Act was willful.

Overall,

Defendant establishes that Plaintiff has no basis to recover on his request for an award of civil penalties for Breach of Express Warranty under the Song-Beverly Act because Plaintiff has not and cannot produce clear and convincing evidence that Plaintiff made a repurchase request, or that Defendant willingly avoided its responsibilities to repurchase the subject vehicle as the Act requires. Thus, the Court GRANTS summary adjudication as to Plaintiffs' claim for civil penalties.

CONCLUSION

Defendant's Motion for Summary Adjudication is GRANTED as to Plaintiff's prayer for civil penalties.

Moving party to give notice.